

The Medical Council Of India Regulations, 2000

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The Medical Council Of India Regulations, 2000

Rule THE-MEDICAL-COUNCIL-OF-INDIA-REGULATIONS-2000 of 2000

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The Medical Council Of India Regulations, 2000

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15.

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In exercise of the powers conferred by section 33 of the Indian Medical Council Act, 1956 (102 of 1956) the Medical Council of India, with the previous sanction of the Central Government, hereby makes the following regulations, namely:-

1.

Short title and commencement .-(1) These regulations may be called the Medical Council of India Regulations, 2000.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these regulation, unless the context otherwise requires,-

(a)

"Act" means the Indian Medical Council Act, 1956 (102 of 1956);

(b)

"Council" means the Medical Council of India constituted under section 3 of the Act;

(c)

"employee" means an employee of the Council, other than an officer of the Council;

(d)

"Executive Committee" means the Executive Committee constituted under clause (1) of section 9;

(e)

"Inspector" means a medical inspector appointed under sub-section (1) of the section 17;

(f)

"officers of the Council" means Additional Secretary, Joint Secretary, Deputy Secretary, Assistant Secretary or any other officer appointed as such by the Council;

(g)

"Registrar" means the Registrar of the Council who shall be the ex officio Secretary and who may also, if deemed expedient, act as Treasurer;

(h)

"Section" means a section of the Act;

(i)

"visitor" means a visitor appointed under sub-section (1) of section 18;

(j)

"Whole-time Inspector" means the whole-time Inspector appointed by the Council.

3.

Office of the Council .-The Office of the Council shall be situated in Delhi.

Part I ? 4. Time and place of meetings of the Council .-(1) The meetings of the Council shall ordinarily be held in Delhi on such dates as may be fixed by the Council:

Provided that the President may call a special meeting at any time after giving fifteen days' notice-

(a)

to deal with any urgent matter requiring the attention of the Council;

(b)

for a purpose referred to in the proviso to clause (b) of sub-regulation (1) of regulation 8;

(c)

on a requisition signed by not less than fifteen members for a purpose which is within the scope of the Council's functions, not being a purpose referred to in clause (b).

(2)

The first meeting of the Council, not being a special meeting, held in any financial year shall be the annual meeting of the Council for that year.

5.

Agenda for special meetings .-At a special meeting (referred to in the proviso to sub-regulation (1) of regulation 4 the subject or subjects for the consideration of which the meeting has been called shall only be discussed.

6.

Notice of meetings .-Notice of every meeting other than a special meeting (called under the proviso to sub-regulation (1) of regulation 4 or under the first proviso to clause (b) of sub-regulation (1) of regulation 8, shall be despatched by the Secretary to each member of the Council not less than thirty days before the date of the meeting.

7.

Agenda paper .-(1) The Secretary shall issue with the notice of the meeting a preliminary agenda paper showing the business to be brought before the meeting, the terms of all motions to be moved of which notice in writing has previously reached him and the names of the movers.

(2)

A member who wishes to move any motion not included in the preliminary agenda paper or an amendment to any motion so included shall give notice to the Secretary not less than fifteen clear days before the date fixed for the meeting.

(3)

The Secretary shall, not less than ten clear days before the date fixed for the meeting, or in the case of a special meeting, with the notice of the meeting, issue a complete agenda paper showing the business to be brought before the meeting.

(4)

A member who wishes to move an amendment to any motion included in the agenda paper, but not included in the preliminary agenda paper shall give notice thereof to the Secretary not less than three clear days before the date fixed for the meeting.

(5)

The Secretary shall cause a list of all amendments of which notice has been given under sub-regulation (4) to be made available for the use of every member:

Provided that the president may, if the Council agrees, allow a motion to be moved at a meeting notwithstanding the fact that notice thereof was received late to admit of compliance with this regulation:

Provided further that nothing in the regulation shall operate to prevent the reference by the Executive Committee of any matter to the Council at a meeting following immediately or too soon after the meeting of the Executive Committee to permit of the notice required under this regulation.

8.

Admissibility of motion .-(1) The President shall disallow any motion-

(a)

if the matter to which it relates, is not within the scope of the Council's functions;

(b)

if it raises substantially the same question as a motion or amendment which has been moved or withdrawn with the leave of the Council at any time during the six months immediately preceding the date of the meeting at which it is designed to be moved:

Provided that such a motion may be admitted at a special meeting of the Council convened for the purpose on the requisition of not less than two-thirds of the members of the Council:

Provided further that nothing in these regulations shall operate to prohibit discussion of any matter referred to the Council by the Central Government in the exercise of any of its functions under the Act;

(c)

unless it is clearly and precisely expressed and raises substantially one definite issue;

(d)

if it contains arguments, inferences, ironical expressions, imputations or defamatory statements:

Provided that if a motion can be rendered admissible by amendment, the President may, in lieu of disallowing the motion, admit it in the amended form.

(2)

When the President disallows a motion, the Secretary shall inform the concerned member stating the reasons for rejection thereof.

Part II ? Conduct Of Business At Meetings Of The Council

9.

Presiding officer .-(1) Every meeting of the Council shall be presided over by the President, or if he is absent, by the Vice-President, or if both the President and the Vice-president are absent, by a Chairman to be elected by the members present from among themselves.

(2)

All references in this part to the President shall be read as referring to the person for the time being presiding over a meeting.

10.

Quorum .-The quorum for a meeting of the Council shall be one-third of the effective membership of the Council on the date of such meeting.

11.

Adjournment for want of quorum .-If, at any time appointed for a meeting or during the course of any meeting, a quorum is not present, the meeting shall be adjourned, and if a quorum is not present, on the expiration of thirty minutes from such adjournment, the meeting shall stand adjourned to such future date and time as the President of the Council may appoint.

12.

Conduct of business .-(1) Every matter raised by a member shall be determined on a motion moved by the member duly seconded and put to the Council by the President.

(2)

When a motion has been moved and seconded and put to the Council by the President, it may be discussed as a question to be resolved either in the affirmative or in the negative or any member may, subject to sub-regulations (2) and (3) of regulation 15, move an amendment to the motion:

Provided that the President shall not allow an amendment to be moved which, if it had been a substantive motion, would have been inadmissible under sub-regulation (1) of regulation 8.

(3)

Any motion or amendment standing in the name of a member who is absent from the meeting may be brought forward by another member with the permission of the President.

13.

Amendment to motions .-When an amendment to any motion is moved and seconded or when two or more such amendments are moved and seconded, the President shall state or read to the Council the terms of the original motion and of the amendment or amendments proposed serially.

14.

Identical motions .-When motions identical in purport stand in the name of two or more members, the President shall decide whose motion shall be moved and the other motion or motions shall thereupon be deemed to be withdrawn.

15. Scope of amendments .-(1) An Amendment shall be relevant to, and within the scope of, the motion to which it is proposed.

(2)

An amendment may not be moved that negates the original motion.

(3)

The President may refuse to put to the Council an amendment which in his opinion is not relevant to the motion.

16.

Form of amendments .-A motion may be amended by-

(a)

The omission, insertion or addition of words, or

(b)

The substitution of words for any of the original words.

17.

Debate .-(1) When a motion or amendment is under debate, no proposal with reference thereto shall be made other than-

(a)

an amendment of the motion or of the amendment as the case may be, as proposed in regulation 13;

(b)

a motion for the adjournment of the debate on the motion or amendment either to a specified date and hour or sine die:

(c)

a motion for the closure, namely a motion that the question be now put;

(d)

a motion that the Council instead of proceeding to deal with the motion do pass to the next item on the programme of business:

Provided that no motion of the nature referred to in clauses (b), (c) and (d) shall be moved or seconded by a member who has already spoken to the question then before the meeting:

Provided further that a motion referred to in clauses (c) and (d) shall be moved without any speech.

(2)

It shall be the discretion of the President to accept or refuse a proposal of the nature referred to in clause (b) of the sub-regulation (1).

(3)

Upon accepting the closure motion, the President shall put the substantive motion or amendment to vote after allowing the mover the right to reply.

18.

Withdrawal of motion .-A motion or an amendment which has been moved and seconded shall not be withdrawn save with the leave of the Council which shall not be deemed to be granted, if any member dissents from the granting of leave.

19.

Discussions by members .-When a motion has been moved and seconded, members other than the mover and the seconded may speak on the motion in such order as the President may direct:

Provided that the seconder of a motion or of an amendment may, with the permission of the President, confine himself to seconding the motion or amendment, as the case may be, and speak thereon at any subsequent stage of the debate.

20.

Right of reply of the mover .-The mover of a motion and, if permitted by the President, the mover of any amendment, shall be entitled to a right of final reply and no other member shall speak more than once to any debate except with the permission of the president, for the purpose of making a personal explanation or of putting a question to the member then addressing the Council:

Provided that a member may at any stage of the debate may raise a point of order substantially incorporating therein a point of law, or statutory procedure, but shall not be allowed to make any speech:

Provided further that a member who has spoken on a motion may speak again on an amendment subsequently moved to the motion.

21.

Voting on motion .-When any motion involving several points has been discussed, it shall be in the discretion of the President to divide the motion and put each or any point separately to vote as he may think fit.

22.

Voting on amendment to motion .-(1) An amendment to a motion shall be put to vote.

(2)

If there are more amendments than one to a motion the President shall decide the order in which they shall be taken up.

(3)

Voting shall ordinarily be by show of hands, but it may be by ballots in case a demand to that effect is made by not less than three members:

(4)

The result of the votes shall be announced by the President.

(5)

In the event of equality of votes, the President shall have casting vote.

23.

Adjournment of meetings .-(1) The President may if he deems necessary at any time, adjourn any meeting to any future date or to any hour of the same day stating the reasons thereof.

(2)

Whenever a meeting is adjourned to a future date, the Secretary shall send notice of the adjourned meeting to all the members.

(3)

When a meeting has been adjourned to a future date and the President changes it to any other date for compelling reasons, the Secretary shall communicate the said change to each member.

(4)

At a meeting adjourned to a future date any motion standing over from the previous day shall, unless the President otherwise directs, takes precedence over other matters on the agenda.

(5)

Either at the beginning of the meeting or after the conclusion of the debate on a motion during the meeting, the President or a member may suggest a change in the order of business on the agenda and if the Council agrees such a change shall take place.

(6)

No matter which had not been on the agenda of the original meeting shall be discussed at an adjourned meeting.

(7)

The same quorum shall be necessary for an adjourned meeting as for the ordinary meeting.

24.

Points of order .-(1) The President shall decide all points of order or disputes which may arise in any meeting.

(2)

If any question arises with reference to procedure in respect of a matter for which these regulations have no provision the President shall decide the same.

25.

Authorised persons to attend General Body meetings .-In the meetings of the General Body, no person other than the members, officers and employees of the Council shall be present except with the prior permission or special invitation of the President.

Part III ? Minutes Of The Council

26.

Proceedings to be preserved .-The proceedings of the meetings of the Council shall be preserved and shall be authenticated, after confirmation at the next meeting of the Council, by the Secretary and the President.

27.

Circulation of minutes .-A copy of the minutes of each meeting shall be submitted by the Secretary to the President within ten days of the meeting and attested by him and they shall then be sent to each member within thirty days of the meeting.

28.

Contents of minutes .-The minutes of each meeting shall contain such motions and amendments as have been moved and adopted or negatives, with the names of the mover and the seconder, but without any comment and without any record of observations made by any member at the meeting.

29.

Objection to minutes, etc .-(1) If any objection regarding the correctness of the minutes is received within thirty days of the despatch of the minutes by the Secretary, such objection together with the minutes as recorded and attested shall be put before the next meeting of the Council for confirmation and at such meeting no question shall be raised except as to the correctness of the records of the meeting.

(2)

If no objection regarding the correctness of the minutes is received within thirty days of the despatch by the Secretary of the minutes, decision taken by the Council may, if expedient, be put into effect before the confirmation of the minutes at the next meeting:

Provided that the President may direct that action be taken on a decision of the Council before the expiry of the period of thirty days mentioned above.

30.

Supply of minutes .-A copy of the minutes of the meetings of the Council shall be made available by the Secretary to each member of the Council. However, it could be made available to a non member or any other person/organisation, upon a written requisition and payment of such fee as may be determined by the Council from time to time.

31.

Record of proceedings .-(1) A report shall be kept of the observations and of the discussions at the meetings of the Council in as accurate a manner as possible for the use of the Members of the Council.

(2)

The detailed proceedings of the meetings which shall be treated as "Confidential" shall be kept in the office and shall be open to members for inspection.

Part IV ? Resignation And Filling Of Causal Vacancies

32.

Resignation .-A member desiring to resign his seat on the Council shall send his resignation in writing to the President and his resignation shall take effect from the date specified by him and in case no such date is mentioned, from the date of receipt of his letter.

33.

Filling of casual vacancy .-When a casual vacancy occurs by reason of death or resignation of a member, a report shall be made forthwith by the President to the Government of India who shall take steps to have the vacancy filled by nomination or election, as the case may be, by the authority or constituency by which the member whose death or resignation has caused the vacancy was nominated or elected for the remaining period.

Part V ? Powers And Duties Of The President And Vice-President

34.

Powers and duties of the President .-The President shall subject to the provision of the Act, rules, regulations and Standing Orders of the Council do such acts as he considers necessary for the furtherance of the objectives for which the Council is established.

35.

Powers and duties of the Vice-President .-If the office of the President is vacant or if the President for any reason is unable to exercise the powers or perform the duties of his office, the Vice-President shall act in his place and shall exercise the power and perform the duties of the President.

Part VI ? Executive Committee

36.

Executive Committee .-The members of the Executive Committee who may be elected by the Council under sub-section (1) of section 10 shall be elected by the members of the Council present and voting together, in the proportion of-

(a)

four members from amongst University representatives,

(b)

three members from amongst nominated members,

(c)

two members from amongst representatives, of registered graduates, and

(d)

one member of the Licentiates Group, as provided in the Medical Council of India (Conduct of Elections to the posts of President, Vice-President, members of the Executive Committee and the elected members of the Postgraduate Medical Education Committee) Regulations, 1998.

37.

President and Vice-President to be members of Executive Committee .-The President and the Vice-President of the Council shall be members ex officio of the Executive Committee and shall be President and Vice-President respectively of that Committee.

Filling up of vacancy on expiry of the term

38.

Intimation of vacancies .-The President shall ninety days before the expiry of the term of a member of the Council intimate the impending vacancy to the Central Government so that the new member may be nominated or elected to fill up the vacant seat from the date of which the vacancy is likely to occur.

39.

Meetings of Executive Committee .-The meetings of the Executive Committee shall be ordinarily governed by the regulations applicable to the meetings of the Council.

40.

Quorum .-Four members of the Executive Committee shall form a quorum.

41.

Adjournment for want of quorum .-If at the time appointed for a meeting a quorum is not present the meeting shall not commence until a quorum is present, and if a quorum is not present on the expiration of thirty minutes from the time appointed for the meeting or during the course of any meeting, the meeting shall stand adjourned to such future date and time as the President may appoint.

42.

Chairman of a meeting .-If both the President and Vice-President are absent, the members present shall elect one of the members to act as Chairperson.

43.

Term of office of a member .-The term of office of an elected member of the Executive Committee shall be two years or until the appointment of his successor, whichever is longer. A member shall be eligible for re-election.

44.

Participation of a member other than a member of the Executive Committee .-The President may invite, a member of the Council, not being a member of the Executive Committee to attend any meeting of the Executive Committee for any particular item of the agenda. Any member so invited shall be free to participate in the discussions, relating to that item but shall have no right to vote.

45.

Sub-Committees .-The Executive Committee may constitute such sub-Committees as it may deem necessary in furtherance of discharge of its duties including examining of any matter referred by the Council.

46.

Notice, etc., for meetings .-(1) Within four weeks before the meeting of the Council, the Executive Committee shall ordinarily meet and also at such other times and places as the President may determine.

(2)

The Secretary shall, at least ten days before the date fixed for the meeting, despatch the notice along with the agenda reflecting therein the business listed before the said meeting, to each member.

47.

Inspectors report .-The Executive Committee shall take into consideration the reports on the course of study, facilities for teaching and examinations submitted by Inspectors and shall thereupon prepare a report for consideration and approval of the Council.

48.

Consideration of reports by Executive Committee .-The Executive Committee shall consider and report to the Council on any subject referred to it by the Council or by the President and exercise such powers and perform such duties as are required by the rules, regulations and standing orders of the Council.

49.

Minutes of meetings .-A copy of the minutes of each meeting shall be drafted by the Secretary to be submitted to the President within ten days of the meeting for his counter signature upon which they shall be sent to each member of the Executive Committee within twenty days of the meeting. In case no corrections/suggestions are received from the members within fifteen days of the date of despatch by the Secretary, the decision recorded therein shall be given effect to. The minutes shall be sent to the members of the Council after confirmation by the Executive Committee at its next meeting:

Provided that the President, may, if necessary, direct that action be taken on a decision of the Executive Committee before the expiry of the said period of fifteen days mentioned above.

Part VII ? Committees

50.

Committees .-(1) A member may, at any time, without notice move that a Committee of the Council be appointed or that the Council do resolve itself into a Committee.

(2)

On the Adoption of the motion referred to in sub-regulation (1), the Council shall appoint a Committee consisting of any number of its members or resolve itself into a Committee for the consideration of any business.

(3)

A motion for the appointment of a Committee shall define the functions of the Committee and the number of members to be appointed.

(4)

Any member may, without notice, move an amendment to such a motion proposing that the functions or the member of members of the Committee be enlarged or reduced.

(5)

If a motion for the appointment of a Committee is adopted, the mover shall name the members to be appointed as

members of the Committee and any member may then move amendments proposing the addition of other names.

(6)

If the number of members proposed as members of the Committee, does not exceed the total number of members to form the Committee, the members so proposed shall be appointed as members of the Committee. If the number of members so proposed exceed the total number of members to form the Committee, ballot shall be held and the requisite number of members who obtain the largest number of votes shall be appointed.

(7)

The President or the Executive Committee may constitute Committees to examine any matter related to the efficient functioning of the Council.

51.

Quorum .-The quorum for a Committee shall be the same as provided for meetings of the Council.

52.

Chairman, etc., of Committees .-(1)(a) The Chairman of a Committee of the whole Council shall be the same as for a meeting of the Council.

(b)

The Chairman of a Committee appointed by the Council shall be appointed by the Council at the time of the appointment of the Committee.

(2)

The proceedings of the Committee shall be conducted in accordance with the regulations applicable to the meetings of the Council.

53.

Resolutions by Committees .-(1) A resolution passed by a Committee of the whole Council shall be embodied in a report prepared by the Secretary and signed by the President and shall have no effect unless confirmed by the Council at a meeting.

(2)

A resolution passed by a Committee appointed by the Council/Executive Committee/President, as the case may be, shall be embodied in the report prepared by the Secretary of the Committee and signed by the Chairman and other members of the Committee, inclusive of notes of dissent, if any, and shall then be presented to the Council, Executive Committee or President, as the case may be.

Part VIII ? Registrar And Other Officers And Powers And Duties Of Registrar And Other Officers Of The Council

Registrar

54.

Registrar .-A person appointed as Registrar shall retire from service on super-annuation on the afternoon of the last date of the month in which he attains the age of sixty years. Extension of service shall not be given in any circumstances except with the approval of the Central Government.

55.

Powers and duties of Registrar .-(1) The Registrar, who is ex officio Secretary shall be the Principal Executive Officer of the Council.

(2)

The Registrar shall be responsible for the safety of the property of the Council and the control and management of the office, accounts and correspondence and shall discharge all such duties as may be required of him by the Council for the purposes of the Act. As Secretary, he shall attend and take notes of the proceedings of the meetings of the Council, Executive Committee, Post Graduate Medical Education Committee and other Committees as may be appointed by the Council or any of its bodies.

(3)

The Registrar shall, while functioning as Treasurer, exercise such powers and discharge such duties as may be laid down by the Council.

56.

Duties of whole-time Inspectors .-The whole-time Inspector shall perform the following duties, namely:-

(i)

carry out comprehensive inspection of the medical colleges, associated training institutions, hospitals and other teaching

centres to ascertain that the standards or facilities provided therein in regard to staff, equipment and academic ambience and other teaching and training of undergraduate and post-graduate courses including research, conforms to the standards laid down by the Council;

(ii)

prepare an annual general review of medical education in the country from the annual reports received from all the medical colleges indicating therein the deficiencies observed, the improvement and progress made and also the adequacy of postgraduate teaching and research;

(iii)

make suggestions for introduction of common assessment standards;

(iv)

perform such other duties as may be entrusted to them by the Council or by the President from time to time and shall be responsible to the Council in all matters pertaining to their duties.

57.

Duties and tenure of officers and employees .-(1) Officers and the employees of the Council shall retire from service on super-annuation on the afternoon of the last day of the month in which an officer or employee attains the age of sixty years. Extension of service shall not be given in any circumstances except with the approval of the Central Government.

(2)

The Officers of the Council shall discharge such duties as may be assigned to them by the Registrar, President or Council from time to time under the overall supervision of the Registrar.

58.

Disciplinary authority .-(1) The disciplinary jurisdiction/authority over the officers shall vest with the Executive Committee. The disciplinary jurisdiction/authority over the employees of the Council shall vest with the Registrar. The appellate jurisdiction/authority for officers and employees of the Council shall vest with the General Body of the Council.

(2)

The Registrar, subject to the approval of the President-

(a)

Shall appoint Group 'C' and 'D' staff against duly sanctioned posts;

(b)

May engage such temporary personnel for a period not exceeding 90 days at one time, as may be required from time to time and pay the remuneration to them.

(3)

The appointment made under sub-regulation (2) shall be reported to the Council.

Part IX ? Inspection Of Examinations

59.

Inspection of examinations, etc .-(1) The inspection of examinations, courses of study and institutions for medical education, under section 17 shall be carried out in accordance with the provisions of this regulation.

(2)

It shall be the duty of the Registrar periodically to ascertain from the examining bodies and institutions the date and place of every such examination, which may be inspected by the Council.

(3)

The Executive Committee shall appoint not less than three inspectors, to inspect such medical colleges/institutions.

(4)

No person shall be appointed as an Inspector unless he has taught students in one or other of the subjects for the relevant public examination or in cognate subjects for five years and has acted as examiner at examinations on such subjects.

(5)

Every Inspector shall receive from the President a formal Commission in writing under the seal of the Council. The said Commission shall specify the medical colleges, hospital and other institutions and the examination or examinations which he is required to inspect and shall inform him that he is to report thereon to the Executive Committee in accordance with these regulations.

(6)

The Inspector shall comply with the following requirements, namely:-

- (a)
to acquaint himself with such previous reports on the-
 - (i)
facilities for teaching existing at the college, associated hospital or other institutions, wherein instructions are given to students; and
 - (ii)
qualifying examination or examinations which he is appointed to inspect as the President may direct;
 - (iii)
observations of the Universities; and
 - (iv)
report of the Executive Committee thereon;
 - (v)
recommendations of the Council in regard to professional examination;
 - (vi)
resolutions with regard to medical education:

Provided that the Registrar shall furnish him with a copy of these documents.

- (b)
 - (i)
to attend personally every examination which he is required to inspect but not to interfere with the conduct thereof;
 - (ii)
to inspect the medical colleges, hospitals and other institutions in regard to matters like the standard of staff, equipment, accommodation, training and other facilities for medical education.
- (c)
to report to the Executive Committee/Post-graduate Medical Education Committee jointly or separately in respect of his/their opinion about the standards of the examination attended by him and all teaching facilities available in the institutions in which the candidates were trained;
- (d)
to set forth in his reports in order all necessary particulars as to the questions proposed in the written, oral and practical parts of each examination attended by him, the cases and the appliances provided for clinical and practical examinations, the arrangements made for invigilation, the method and scales of marking the standard of knowledge shown by successful candidates and generally all such details as may be required for evaluating the scope and nature and standards of the examination;
- (e)
to inspect and set forth in his report information relating to and comments on teaching facilities, equipment, accommodation and staff existing at such colleges, hospitals and other institutions;
- (f)
to include in his report, in the form of a brief diary a record of the days and hours when he was present during the course of the examination inspected and to see for himself the teaching facilities provided and of the parts or division of each examination in progress on each day;
- (g)
to include also in his report a statement of the extent to which the recommendation of the Council in regard to professional examinations have been carried out in the cases of each examination inspected by him, and also to what extent the resolutions of the Council on professional education have been given effect to in the education of the students in the particular subject or subjects with which he is concerned in the inspection; and
- (h)
on receipt from the Registrar of a proof copy of any of his report, to compare such proof with the original and correct, sign, and return it to the Registrar for preservation, in the records of the Council, as the authorised copy of such report.

(7)
Every report of the Inspector shall be referred to the Executive Committee for its consideration and reporting to the Council.

(8)

The report of the Inspector shall be confidential and shall be kept under the custody of the Registrar.

(9)

A copy of the report of the inspector shall be forwarded to the University/institution concerned with the request that the University or institution shall promptly furnish to the Council such observations thereon as it may deem necessary maintaining the confidentiality thereof.

(10)

A confidential copy of every report of an Inspector with the observations of the University/institution thereon shall be supplied to each member of the Council, and shall be considered together with the report of the Executive Committee thereon by the Council at its ensuing meeting.

(11)

A copy of every report by an Inspector, with the observations of the University concerned, and the opinion of the Executive Committee thereon shall, after approval by the Council be forwarded to the Central Government.

(12)

No Inspector shall take part in the inspection of any examination in the University or Medical College in which he is a teaching or examiner.

(13)

An Inspector may accept ordinary hospitality from, but may not accept hospitality of house and board from examiners or from any official of the University or Institution in which he is conducting an inspection.

Part X ? Visitors Appointed By The Council

60.

Appointment of visitor .-(1) The visitation shall be carried out in accordance with this regulation.

(2)

Subject to the provisions of sub-section (2) of section 18, a visitor may be either a member of the Council or some person who is or has been a teacher at a medical college affiliated to an Indian University for at least five years and shall have acted as examiner.

(3)

A visitor who is a member of the Council shall not receive any remuneration, but shall be paid traveling and other allowances according to the scale prescribed for members for attending the meetings of the Council and a visitor who is not a member of the Council shall be paid traveling and other allowances in accordance with the scale prescribed for the Inspectors.

(4)

Every visitor shall receive from the President a formal Commission in writing under the seal of the Council. The Commission shall specify the examination or examinations and the medical colleges, hospitals and other institutions where medical education is given which he is required to visit and shall inform him that he is to report thereon to visit and shall inform him that he is to report thereon to the President in accordance with these regulations and to conduct enquiries or make inspection regarding specific issues mentioned in the commission, in accordance with these regulations.

(5)

It shall be the duty of a visitor to-

(a)

attend personally every examination which he is required to visit and to see for himself the teaching facilities provided;

(b)

report to the President of the Council independently and separately on every examination visited by him:

(c)

include in his report as he may deem "relevant and desirable" a record of the days and hours when he was present during the course of each examination visited and of the parts or divisions of examinations in progress on each day and of the Medical Colleges, hospitals and other institutions which he visited;

(d)

include also in his report a statement to the extent to which the recommendations of the Council in regard to professional examinations have been carried out in the case of each examination visited by him and also to what extent

the recommendations of the council on professional education have been given effect to in the visitation, and also the facilities for teaching in regard to accommodation, staff, equipment, existing in the medical colleges and associated hospitals and other institutions visited by him;

(e)

include in his report such other relevant observations as he may deem desirable;

(f)

make such inspections and enquiries on behalf of the Council as he might think necessary so as to enable him to draw up a report to the President on the specific issues for which the visitation is made.

Part XI ? Indian Medical Register

61.

Indian Medical Register .-(1) The Registrar shall maintain the Indian Medical Register and it shall bear the seal of the Council.

(2)

The Indian Medical Register shall also bear a preface which shall contain a covering page with the seal of the Council, names of the State Medical Councils with whose Registers the Indian Medical Register has been compiled.

62.

Intimation of registration by State Medical Councils .-All the State Medical Councils shall intimate to the Council as soon as a medical practitioner is fully registered with the respective State Medical Councils. All State Medical Councils shall also intimate to the Council immediately regarding any change in name or registration of Additional qualifications or address or removal of name, as envisaged under sub-section (1) of section 24, of a medical practitioner registered with the respective State Medical Councils as and when received.

63.

Publication of supplements to Indian Medical Register .-Supplements to the Indian Medical Register shall be published every year and the Indian Medical Register shall be revised and published every five years.

64.

Direct registration .-(1) Application for direct registration with the Council, as envisaged under section 23, may be received in Form A, in duplicate, annexed to these regulations.

(2)

A fee as fixed from time to time with the approval of the Central Government shall be chargeable as registration fee.

(3)

The following documents shall be sent along with the application:-

(a)

Copy of Degree or Diploma or Certificate from the Head of the Institution (Provisional Certificate).

(b)

Certificate of Post-examination practical training.

(4)

A Certificate in form B annexed to these regulations shall be issued by the Registrar under his seal, to all persons who are directly registered with the Council and a copy of the said certificate shall be forwarded to the State Medical Council concerned for inclusion of the name in the State Medical Register.

65.

Provisional registration .-The names of provisionally registered medical practitioners should be borne on a separate list maintained for the purpose and they shall not be included in the State Medical Registers. In order to have a uniform procedure by all State Medical Councils with regard to the list of provisionally registered medical practitioners under section 25, the certificate for provisional registration should be issued in the following proforma :-

Name of the Person

:

Address

:

Qualification

:

Date of Year of passing Examination

:

Name of College and University

:

66.

">66. Registration of additional qualifications .-Application for registration of additional qualification in the Indian Medical Register may be received direct by the Council in Form C annexed to these regulations. A fee as fixed from time to time with the approval of the Central Government may be charged for registration of additional qualification either in substitution for or in addition to any entry previously made. Copy of Degree/Diploma duly attested shall be sent alongwith the application.

67.

Residuary provision .-Matters relating to the conditions of service of the Registrar and other employees of the Council with, respect to which no express provisional has been made in the regulations shall be as per the rules applicable to officers and employees of Central Government.

FORM A

[See regulation 64 (1)]

Application Form For Registration In The Indian Medical Register

1. Name of the applicant

(In Block Letters) (Surname)

2. Sex : Male/Female

3. Father's Name (Full)

4.

Date and place of Birth

5. Preliminary education (full particulars of Matriculation/Secondary equivalent examination passed with name of the examining body and with the year of obtaining)

6. Date of passing Inter-Science or Higher Secondary or equivalent examination with the name of the University.

7. Name of the Medical School/College attended with the date of joining and leaving.

8. Name of the Medical Degree/Diploma obtained and University/Licensing Body with the year of obtaining the qualification.

9. Whether he/she has undergone practical training before or after obtaining the medical diploma/degree as an Internee in a hospital? If so, whether the hospital or Institute where such training was obtained is recognised either by the Council or Medical School/College concerned (Give full details of the Hospital/Institution).

10. Details of bank draft attached towards registration.

11. Is he/she registered with any State Medical Council? The name of the Body with which registered and number and date of registration.

12. Is he/she a citizen of India

(a)

by birth or

(b)

by domicile

If so, state the date of becoming Indian citizen.

13. Present Occupation and Address (In block letters)

14. Permanent Address (In block letters)

.....

Signature of Applicant

Dated.....

Note: Following documents to be enclosed with application:

1. The application form should be properly and neatly filled in.

2. (a) Degree or Diploma in original or Provisional Certificate from the University/or Dean of the college that the applicant is eligible for the award of the degree along with attested copies thereof may be forwarded along with the Registered Certificate.

(b)

Duly attested copy of certificate of practical training. (Compulsory rotating internship) issued by Dean of the college.

(c)

Provisional registration Certificate in original.

(d)

Two recent passport size photographs front view.

(e)

Signature on two self adhesive slips provided with application.

3. The total registration fee is Rs.1500/- (Rs. 500/- chargeable at the time of Provisional Registration). If already provisionally registered, then a Bank Draft of Rs.1000/- (Rupees One Thousand only) in favour of the Secretary, Medical Council of India, payable at New Delhi, be sent along with the application as fee for registration.

FORM B

[See regulation 64 (4)]

Medical Council Of India

Aiwan-E-Galib Marg, Kotla Road, New Delhi-110002.

Certificate Under Section 23 Of The Indian Medical Council Act, 1956 Registration Certificate.

Certificate No. MCI/

Name

Father's Name

Address

Date and place of Registration

Qualification

& date thereof

(M)/(F)

It is hereby certified that this is a true copy of the above specified Name in the Indian Medical Register.

(SEAL)

Registrar

Medical Council of India

New Delhi

Date the.....

Important Notices

Every Registered Medical Practitioner should be careful to send to the Registrar's immediate notice of any change in his address and also answer all enquiries that may be sent to him by the Registrar in regard thereto in order that his correct address may be duly inserted in the Register of Registered Practitioners.

No charge is made for alteration of address.

All persons registered under whatever Diplomas are legally qualified for the practice of Medicine, Surgery, and Midwifery.

(M)

& (F) indicates (Male) & (Female) respectively.

FORM C

(See regulation 66)

Medical Council Of India

Application Form

Registration of Additional Qualification/s u/s 26(1) of the Indian Medical Council Act, 1956.

1. Name of the Doctor

2. Address as given in the Indian Medical Register

3. Present Address in Block Capitals with Pin code & Phone No.

4. Permanent Address in Block Capitals with Pin Code & Phone No.

5. (a) Primary qualification (i.e. 'MBBS' or equivalent) with year of obtaining.

(b)

Name & Address of college/institute attended for the same alongwith duration of course

(c)

Date of completion of Internship

(d)

University awarding the qualification.

6. (a) Name of the State Medical Council with which registered

(b)

Registration Number (as it appears on the Registration Certification)

(c)

Date of Registration

7. Additional Qualification for which Certificate is requested with documentary proof.

Details to be furnished in the table given as under. (please do not fill the remarks column).

Qualification

College Attended

University Qualification

Date of R/NR etc.

Remarks

Date:.....

.....

Signature of the Candidate

Declaration

8. I solemnly affirm & declare that the above entries made by me are correct.

Date:.....

.....

Signature of the Candidate

Instruction To Candidates For Filling The Application For Registration Of Additional Qualification U/s 26(1) Of The Indian Medical Council Act, 1956

1. The application form should be properly and neatly filled in.

2. A non-refundable crossed Bank Draft @Rs.100/- (Rupees One Hundred only) for each qualification, in favour of Secretary, Medical Council of India, New Delhi, payable at New Delhi, must be enclosed alongwith the application as fee.

3. The candidate is required to send the original as well as a copy, duly attested by Magistrate/Gazetted Officer, of the degrees/diplomas or provisional certificate of Postgraduate qualification issued by the Registrar of the University concerned, as shown in col. `7' of the application form. The originals will be returned alongwith the certificate of registration of additional qualification and the attested copies will be retained in this office and submit attested photocopy of permanent registration certificate.

4. The application is to be forwarded direct, to this office and be addressed to the Registrar, Medical Council of India, Aiwan-E-Galib Marg, (Opp. Mata Sundari College for Women), Kotla Road, New Delhi-110002.

5. The certificate will be issued only to those who possess a registrable basic medical qualification and subsequently have obtained recognised postgraduate medical qualification (s) as per provisions of the Indian Medical Council Act, 1956.

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